

Court No. - 40

Case :- WRIT - C No. - 18333 of 2018

Petitioner :- Mohd. Jameel

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ulajhan Singh Bind

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard Ms. Kesa Verma, learned counsel for the petitioner.

It appears that the recovery in question has been issued by the respondent Electricity Department the notice on the learned counsel for the respondent no.4 has not been served. The petitioner may serve a copy on the learned counsel for the respondent during the course of the day.

Put up tomorrow as fresh.

Order Date :- 22.5.2018

R./

Court No. - 40

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Petitioner :- Mohd. Jameel

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ulajhan Singh Bind

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Chandan Agarwal has accepted notices on behalf of the fourth respondent he prays that the matter be taken up day after tomorrow.

Put up day after tomorrow.

Order Date :- 23.5.2018

R./

Court No. - 40

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Petitioner :- Mohd. Jameel

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ulajhan Singh Bind

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard Ms. Kesha Varma, learned counsel for the petitioner and Sri Chandan Agrawal, learned counsel for the respondent.

This is a billing dispute of electricity consumption raised through the present writ petition. Learned counsel for the respondent no.4 Sri Chandan Agrawal submits that the bill, the dues whereof are sought to be recovered through the impugned citation, are of the year 2013. The impugned citation is of a very petty amount of Rs. 35,226/- in relation to a domestic connection.

Since this is essentially a billing dispute, it would be appropriate that the petitioner files an application before the respondent no. 4 in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005 within a period of 10 days from today. In case such an application is filed along with a certified copy of this order the respondent no.4 shall proceed to consider the same and pass an appropriate order within six weeks' thereafter. The recovery citation shall not be enforced till then.

Disposed of with the said directions.

Order Date :- 25.5.2018

M. ARIF